

Response to an Application in a Proceeding

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE 5.05

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify) _____

Filed on behalf of:

Full name: Stephen Christopher Cooke

Client ID _____

File number (P)NCC3896/2023

Filed at NEWCASTLE

Filed on _____

Court location Building, 97/99 Goulburn Street,
Sydney, NSW 2001

Next Court date 23 July 2024 at 11.30am

This form is used by the **respondent/s** named in the **Application in a Proceeding** who wishes to oppose the orders sought or asks the Court to make other orders.

You will need to file an affidavit with this form unless this is responding to an application to review an order of a Registrar.

Part A About the parties

1

APPLICANT 1

Family name as at Item 2 of the Application in a Proceeding

Cooke

Given names

Heather Anne

APPLICANT 2

Family name as at Item 2 of the Application in a Proceeding

Given names

RESPONDENT 1

Your family name as used now

Cooke

Given names

Stephen Christopher

RESPONDENT 2

Your family name as used now

Given names

2

What is your contact address (address for service) in Australia?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You must also give an email address.

Ramsden Family Law Pty Ltd, Level 6, 15 Castlereagh Street

Sydney

State NSW

Postcode 2000

Phone 1300 749 709

Lawyer's code RAM7921757

Email mshepherd@ramsdenlaw.com.au

Part B The orders you [THE RESPONDENT] are seeking

State the paragraph numbers of the orders sought in the Application in a Proceeding (at Part D, Item 6) with which you agree.

(GIVE EACH ORDER THE SAME PARAGRAPH NUMBER AS ON THE APPLICATION IN A PROCEEDING eg, 3, 4, 6, 10).

4 State briefly any other orders that you are seeking.

3

1. The Applicant wife's Application in a Proceeding filed on 31 May 2024 be dismissed.
2. Order 7 made on 11 April 2024 be replaced as follows:
 - (a) *the wife is to pay interim spousal maintenance to the husband in the sum of \$1,200.00 per week, from the date of these orders for a period of 3 months.*
 - (b) *Thereafter, the wife is to pay interim spousal maintenance to the husband in the sum of \$900.00 per week, for a further period of 9 months.*
3. The Applicant wife pay the husband's costs of this Application in a Proceeding..

Attach extra pages if you need more space.

Part C Certification

I certify that to the best of my knowledge and information, the orders sought in this response are supported by evidence.

Part D Signature of respondent or lawyer

Signed

Date

	/ /
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This response was signed by ☒ the respondent/s ☐ lawyer for the respondent/s

This response was prepared by ☐ respondent/s ☒ lawyer

Matthew Shepherd

RAM7921757

PRINT NAME AND LAWYER'S CODE

Approved by Chief Justice/Chief Judge pursuant to Rule 15.21

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